■ 범죄수사규칙 [별지 제163호서식]

Statement Recording Notice and Consent Form

KICS Receipt No.			
Name		Date of Birth	

<The statement recording process is enacted by the police to protect the human rights of the subjects of investigation through objective and transparent investigation procedures. Carefully read the following information, and your statements will be recorded only if you agree to the contents of the form.>

※ However, the statement recording may not be conducted due to inevitable reasons such as the lack of room used for statement recording or the failure in equipment, even though the subject of the investigation has agreed to record one's statements.

○ Even though the recording has started by the consent of the subject of investigation, the subject may request the inspector to stop recording one's statements. Similarly, the subject may request to be recorded during an investigation, even though the subject has refused to do so in the beginning.

○ The recording of statement shall begin when the subject of the investigation starts filling out the report, and shall end when the report is completed by the subject's stamp or sign on the report with the date.

○ The recorded file shall solely be used for confirmation on matters related to the violation of human rights, matters related to the verification of the report in accordance with one's statement, and for recollection of the subject's memory on the topic of the investigation. The file will not be sent to the prosecution.

※ However, if the recorded file is requested by the court or investigation agency, the file may be transmitted.

○ The recorded file is accessible during the process of reviewing the report or immediately after completing the report by stamping or signing the report with the date. From that time on, the contents of the statement is accessible through transcribing or listening to the recorded files in compliance with the Information Disclosure Request Procedure.

* The costs for transcription will be paid for by the subject(s), and the file of statement recording (including duplicates and copies) will not be provided.

※ A copy of the report can be provided through the Information Disclosure Request Procedure apart from listening and/or recording the file of statement recording.

○ The recorded file will be discarded after three years since it was created, in order to protect personal information of the subjects of the investigation.

※ However, in case the file of the statement recording is requested by the court or investigation agency, or is requested for viewing or copying by the Information Disclosure Request before the three-year expiration, the file will be discarded after all the measures has been taken according to the request procedure.

○ All subjects of the investigation may refuse statement recording.

■ **Do you agree to the statement recording out of your own volition?**

I agree ( ) I disagree ( )

20 . . . Name (Signature)